

 STATEWIDE POLICY	NUMBER 107-011-320	SUPERSEDES Policy 125-6-320 March 1, 1998
	EFFECTIVE DATE March 1, 1998	PAGE NUMBER Pages 1 of 4
Division Enterprise Asset Management	REFERENCE ORS 276.440 and other related provisions of ORS chapter 276 OAR 125-75-0002 to 125-75-0015	
Policy Owner Facilities		
SUBJECT Public Use of state building premises	APPROVED SIGNATURE On File	

PURPOSE

To establish policies and procedures for the occasional use of available space or rooms in Department-owned or controlled buildings for meetings, hearings or assemblies by other public agencies and private citizens in order to better serve customers

APPLICABILITY

Any State Agency, state employees, public entities, private persons, and public or private organizations requesting use of buildings, interior building premises, grounds or parking lots owned or controlled by the Department of Administrative Services.

FORMS/EXHIBITS/INSTRUCTIONS

- [Event Application form](#)
- [Event Permit form](#)

City of Salem Codes: <http://new.cityofsalem.net/Pages/salem-revised-code.aspx>

DEFINITIONS

None

EXCLUSIONS AND SPECIAL SITUATIONS

- The State Capitol Building, State Capitol State Park, and the Supreme Court Building, including their respective entrance areas are outside the jurisdiction of the Department. Direct inquiries to:
 - o Legislative Administration for use of the State Capitol building
 - o Oregon Parks and Recreation Department for use of the State Capitol State Park
 - o Office of the State Court Administrator for the Supreme Court building
- All exceptions and special situations must be submitted in writing and approved by the DAS-EAM Administrator or designee. The requesting agency represents that all internal agency policies have been met.
- Any additional clean up necessary may be invoiced to the user.

POLICY

I. General Guidelines

- A. Pursuant to ORS 276.440, other related provisions of ORS Chapter 276 and OAR 125-75-010, for any State building owned or controlled by the Department, the Division may permit the occasional use of any unoccupied or otherwise available space or rooms by persons or organizations for conventions, assemblies, or other public meetings when doing so is not contrary to any applicable law or policies of the state, or disrupt the operations of the building or State government. Such use of meeting rooms shall be subject to restrictions and payment of fees where applicable under this Policy pursuant to OAR 125-75-010.

Any inquiry or request for such activity must include the time, place, type of activity being proposed and the organizational affiliation, if any; and be received at least seven (7) days in advance of the date such activity is to take place. Any inquiry or request for such activity for a time during normal office hours should be addressed to either a Director, Administrator or other management authority acting in the capacity of Building Manager/Coordinator residing in a building under the jurisdiction of the Department or to:

Events

DAS Facilities Division

Operations and Maintenance Section

1240 Ferry Street SE

Salem, OR 97301-4288

Phone (503) 378-3664 x255

- B. The Division, through its O & M Section, will serve in an advisory capacity as requested by either the Department or a Building Manager.
- C. For public use of State premises in the evenings or on weekends when buildings are normally closed to the public, applicants must contact O & M.
- D. Fees for the use of each assembly space or meeting room shall be set by O & M. There may be a space rental fee, a security fee, heating and air-conditioning charges and/or a clean up or other support fee. If a custodial services fee is applicable, the charge shall be for not less than two hours. Note: There will always be a fee for non-office hours' usage but not always for usage during office hours.

The income from the space rental and service fee shall be deposited in the General Services Operating Account to be credited to the Cost Centers which incurred the costs.

- E. O & M or a Building Manager/Coordinator shall refuse to permit the use of such space when it determines that doing so is contrary to any applicable law or policies of the State, or disrupt the operations of the building or the working of the State.

II. The following activities are either prohibited or restricted on State premises under the jurisdiction of the Department:

- A. Any activity which generally produces excessive noise, such as musical performances with high amplification.
- B. Any activity considered by the Building Manager/Coordinator likely to endanger personal safety or property.
- C. Any activity where alcoholic beverages are served or any illegal drugs or controlled substances by law are used.

- D. Fixation of banners, posters, placards or similar items. All such items shall be free standing unless otherwise authorized by the Building Manager/Coordinator.
 - E. Location and size of activity advertisements, signs, posters, placards and similar items.
 - F. Food or beverage distribution and consumption. All such activities shall comply with Marion County health standards and restrictions.
 - G. Sales and solicitation activities unless approved by the Building Manager/ Coordinator (see Policy 125-6-322).
- III. The State shall not be responsible for preparation of State premises
 - IV. White boards, flip charts and overhead projectors may be available upon prior request.
 - V. The State shall not be responsible to provide security
 - VI. Individuals and organizations authorized to use State premises shall sign a waiver indicating that the Department is not liable for any damaged or stolen items.
 - VII. Public users must provide the State short-term, General Liability proof of insurance of not less than \$500,000 prior to the activity date, if determined applicable by the State.
 - VIII. Applicants must reserve State premises early, at least seven days in advance, and pay all applicable use fees in advance of the dates or times reserved. Any cancellation must be made as soon in advance as possible to allow rescheduling. When a scheduled user fails to cancel the reservation at least three business days in advance, the scheduled user shall be responsible for the applicable charges for the period reserved for use
 - IX. Scheduling of such State premises will be done in order of priority first to state agencies, second to other public agencies, and third, to private citizens or organizations
 - X. The State reserves the right to cancel or alter any scheduled or reserved use of any space in the case of public safety or emergency.
 - XI. All users of State premises shall leave the rooms in a reasonably clean condition after each use. If excessive clean up by O & M's personnel is necessary, the user may be billed for the additional custodial services for cleanup.

PROCEDURE

<u>Responsibility</u>	<u>Action</u>
Public Applicants for State Premises Use	Apply to the Division, O & M, or a Building Coordinator/Building Manager residing in the Building.
Operations and Maintenance Section or Building Coordinator/ Building Manager	Receives requests, consults with the building tenant agency representative when appropriate to determine whether the proposed activities should be permitted. Building Manager consults with Operations and Maintenance if necessary.

Public Applicants	1. Complete and sign State Premises Agreement and return with payment of any applicable fees (payment to be made payable to the Department of Administrative Services). 2. Follow other procedures and restrictions specified by the Agreement relative to the use of State premises. 3. Leave the premises in reasonably clean condition after use. In case an excessive clean up by the Division's custodial personnel is necessary, the user may be billed for the additional custodial services for the clean-up.
Operations and Maintenance Section	1. Establishes the applicable fees and section charges to defray the costs. 2. Acts as advisor to Building Managers/Coordinators. 3. When necessary, O & M's Custodial staff opens the building and/or the meeting room, stays on duty for security purposes for the duration of the use of the room, tidies up the room, and locks the room and secures the premises at the end of the use.